

In this canvass, both before and after I became a candidate, no argument or appeal of mine was directed against the perpetuation of the Union. Believing, however, that the signs of

which you are entitled, I received this day the St. Joseph Valley Register, marked by you, to call my attention to an article in answer to your defense, which was just in all things, save your too complimentary terms.

"I wish I had the letter quoted from that you might publish the whole of that which is garbled to answer a purpose. In a part of the letter not published, I put such a damper on the attempt to fix on me the desire to break up our Union, and presented other points in a form so little acceptable to the unfriendly inquirers, that the publication of the letter had to be drawn out of them.

"At the risk of being wearisome, but encouraged by your marked friendship, I will give you a statement in the case. The meeting of October, 1849, was a convention of delegates equally representing the Whig and Democratic parties in Mississippi. The resolutions were decisive as to equality of right in the South with the North to the Territories acquired from Mexico, and proposed a convention of the Southern States. I was not a member, but on invitation addressed the Convention. The succeeding Legislature instructed me, as a Senator, to assert this equality, and, under the existing circumstances, to resist by all constitutional means the admission of California as a State. At a called session of the Legislature in 1850 a self-constituted committee called on me, by letter, for my views. They were men who had enacted or approved the resolutions of the Convention of 1849 and instructed me, as members of the Legislature in regular session, in the early part of the Year 1850. To them I replied that I adhered to the policy they had indicated and instructed me in their official character to pursue.

"I pointed out the mode in which their policy could, in my opinion, be executed without bloodshed or disastrous convulsion, but in terms of bitter scorn alluded to such as would insult me with a desire to destroy the Union, for which my whole life proved me to be a devotee.

"Pardon the egotism in consideration of the occasion, when I say to you that my father and my uncles fought through the Revolution of 1776 giving their youth, their blood and their little patrimony to the constitutional freedom which I claim as my inheritance. Three of my brothers fought in the war of 1812. Two of them were comrades of the Hero of the Hermitage and received his commendation for gallantry at New Orleans. At sixteen years of age I was given to the service of my country, for twelve years of my life I have borne its arms and served it zealously if not well. As I feel the infirmities, which suffering more than age has brought upon me, it would be a bitter reflection, indeed if I was forced to conclude that my countrymen would hold ill this light when weighed against the empty panegyric which a time-serving politician can bestow upon the Union, for which he never made a sacrifice.

"In the Senate I announced that if any respectable man would call me a disunionist I would answer him in monosyllables. But I have often asserted the right, for which the battles of the Revolution were fought—the right of a people to change their government whenever it was found to be oppressive, and subversive of the objects for which governments are instituted—and have contended for

the time portended danger to the South from the usurpation by the General Government of undelegated powers, I counseled that Mississippi should enter into the proposed meeting of the People of the Southern States, to consider what could and should be done to insure our future safety, frankly stating my conviction that, unless such action were taken then, sectional rivalry would engender greater evils in the future, and that, if the controversy was postponed "the last opportunity for a peaceful solution would be lost, then the issue would have to be settled by blood."

CHAPTER IV.

The Author enters the Cabinet—Administration of the War Department—Surveys for a Pacific Railway—Extension of the Capitol—New Regiments organized.—Colonel Samuel Cooper, Adjutant-General—A Bill of Civil Services Reform—Reflection to the Senate.—Continuity of the Pierce Cabinet.—Character of Franklin Pierce.

HAPPY in the peaceful pursuits of a planter, busily engaged in cares for servants, in the improvement of my land, in building, in rearing live-stock, and the like occupations, the time passed pleasantly away until my retirement was interrupted by an invitation to take a place in the Cabinet of Mr. Pierce, who had been elected to the Presidency of the United States in November, 1852. Although warmly attached to Mr. Pierce personally, and entertaining the highest estimate of his character and political principles, private and personal reasons led me to decline the offer. This was followed by an invitation to attend the ceremony of his inauguration, which took place on the 4th of March, 1853. While in Washington, on this visit, I was

the independence and sovereignty of the States, a part of the creed of which Jefferson was the apostle, Madison the expounder, and Jackson the consistent defender.

"I have written freely, and more than I designed. Accept my thanks for your friendly advocacy. Present me in terms of kind remembrance to your family, and believe me, very sincerely yours,
J. DAVIS.

"NOTE.—No Party in Mississippi ever advocated disunion. They differed as to the mode of securing their rights in the Union, and on the power of a State to secede—neither advocating the exercise of the power.
J. D."

induced by public considerations to reconsider my determination and accept the office of Secretary of War. The public records of that period will best show how the duties of that office were performed.

While in the Senate, I had advocated the construction of a railway to connect the valley of the Mississippi with the Pacific coast, and when an appropriation was made to determine the most eligible route for that purpose, the Secretary of War was charged with its application. We had then but little of that minute and accurate knowledge of the interior of the continent which was requisite for a determination of the problem. Several different parties were therefore organized to examine the various routes supposed to be practicable within the northern and southern limits of the United States. The arguments which I had used as a Senator were of the military necessity for such means of transportation, and the need of safe and rapid communication with the Pacific slope, to secure its continuance as a part of the Union.

In the organization and equipment of these parties, and in the selection of their officers, care was taken to provide for securing full and accurate information upon every point involved in the determination of the route. The only discrimination made was in the more prompt and thorough equipment of the parties for the extreme northern line and this was only because that was supposed to be the most difficult of execution of all the surveys.

In like manner, my advocacy while in the Senate of an extension of the Capitol by the construction of a new Senate Chamber and Hall of Representatives, may have caused the appropriation for that object to be put under my charge as Secretary of War.

During my administration of the War Department, material changes were made in the models of arms. Iron gun-carriages were introduced and experiments were made which led to the casting of heavy guns hollow, instead of boring them after casting. Inquiries were made with regard to gunpowder, which subsequently led to the use of a coarser grain for artillery.

During the same period the army was increased by the addition of two regiments of infantry and two of cavalry. The

officers of these regiments were chosen partly by selection from those already in service in the regular army and partly by appointment from civil life. In making the selections from the army, I was continually indebted to the assistance of that pure-minded and accurately informed officer, Colonel Samuel Cooper, the Adjutant General, of whom it may be proper here to say that, although his life had been spent in the army, and he, of course, had the likes and dislikes inseparable from men who are brought into close contact and occasional rivalry, I never found in his official recommendations any indication of partiality or prejudice toward any one.

When the first list was made out, to be submitted to the President, a difficulty was found to exist, which had not occurred either to Colonel Cooper or myself. This was, that the officers selected purely on their military record did not constitute a roster conforming to that distribution among the different States, which, for political considerations, it was thought desirable to observe—that is to say, the number of such officers of Southern birth was found to be disproportionately great. Under instructions from the President, the list was therefore revised and modified in accordance with this new element of geographical distribution. This, as I am happy to remember, was the only occasion in which the current of my official action, while Secretary of War, was disturbed in any way by sectional or political considerations.

Under former administrations of the War Office it had not been customary to make removals or appointments upon political grounds, except in the case of clerkships. To this usage I not only adhered, but extended it to include the clerkships also. The Chief Clerk, who had been removed by my predecessor, had peculiar qualifications for the place, and, although known to me only officially, he was restored to the position. It will probably be conceded by all who are well informed on the subject that his restoration was a benefit to the Public service.*

[The reader desirous for further information relative to the

* Soon after my entrance upon duty as Secretary of War, General Jesup the Quartermaster General presented to me a list of names from which to make selection of a clerk for his department. Observing that he had attached certain figures

administration of the War Department during this period may find it in the various official reports and estimates of works of defense prosecuted or recommended, arsenals of construction and depots of arms maintained or suggested, and foundries employed during the Presidency of Mr. Pierce, 1853-57.]

Having been again elected by the Legislature of Mississippi as Senator to the United States, I passed from the Cabinet of Mr. Pierce, on the last day of his term (March 4, 1857), to take my seat in the Senate.

The Administration of Franklin Pierce presents the only instance in our history of the continuance of a Cabinet for four years without a single change in its personnel. When it is remembered that there was much dissimilarity if not incongruity of character among the members of that Cabinet, some idea may be formed of the power over men possessed and exercised by Mr. Pierce. Chivalrous, generous, amiable, true to his friends and to his faith, frank and bold in the declaration of his opinions, he never deceived any one. And if treachery had ever come near him, it would have stood abashed in the presence of his truth, his manliness, and his confiding simplicity.

To these names, I asked whether the figures were intended to indicate the relative qualifications, or preference in his estimation, of the several applicants, and, upon his answer in the affirmative, without further question, authorized him to appoint "No. 1" of his list. A day or two afterward certain Democratic members of Congress called on me and politely inquired whether it was true that I had appointed a Whig to a position in the War Office. "Certainly not," I answered. "We thought you were not aware of this," said they, and proceeded to inform me that Mr. _____, the recent appointee to the clerkship just mentioned, was a Whig. After listening patiently to this statement, I answered that it was they who were deceived, not I. I had appointed a clerk. He had been appointed neither as a Whig nor as a Democrat, but merely as the fittest candidate for the place in the estimation of the chief of the bureau to which it belonged. I further gave them to understand that the same principle of selection would be followed in similar cases, so far as my authority extended. After some further discussion of the question, the visitors withdrew, dissatisfied with the result of the interview.

The Quartermaster-General, on hearing of this conversation, hastened to inform me that it was all a mistake, that the appointee to the office had been confounded with his father, who was a well-known Whig, but that he (the son) was a Democrat. I assured the General that this was altogether immaterial, adding that it was "a very pretty quarrel" as it stood, and that I had no desire to effect a settlement of it on any inferior issue. Thenceforward, however, I was but little troubled with any pressure for political appointments in the Department.

CHAPTER V.

The Territorial Question.—An Incident at the White House.—The Kansas and Nebraska Bill.—The Missouri Compromise abrogated in 1850, not in 1854.—Origin of "Squatter Sovereignty"—Sectional Rivalry and its Consequences.—The Emigrant Aid Societies.—"The Bible and Sharps' Rifles"—False Pretensions as to Principle.—The Strife in Kansas.—A Retrospect.—The Original Equilibrium of Power and its Overthrow.—Usurpations of the Federal Government.—The Protective Tariff.—Origin and Progress of Abolitionism.—Who were the Friends of the Union?—An Illustration of Political Morality.

THE organization of the Territory of Kansas was the first question that gave rise to exciting debate after my return to the Senate. The celebrated Kansas-Nebraska Bill had become a law during the Administration of Mr. Pierce. As this occupies a large space in the Political history of the Period, it is proper to state some facts connected with it, which were not public, but were known to me and to others yet living.

The declaration, often repeated in 1850, that climate and the will of the People concerned should determine their institutions when they should form a Constitution, and as a State be admitted into the Union, and that no legislation by Congress should be permitted to interfere with the free exercise of that will when so expressed, was but the announcement of the fact so firmly established in the Constitution, that sovereignty resided alone in the States, and that Congress had only delegated powers. It has been sometimes contended that because the Congress of the Confederation, by the Ordinance of 1787, prohibited involuntary servitude in all the Northwestern Territory, the framers of the Constitution must have recognized such power to exist in the Congress of the United States. Hence the deduction that the Prohibitory clause of what is known as the Missouri Compromise was justified by the precedent of the Ordinance of 1787. To make the action of the Congress of the Confederation a precedent for the Congress of the United States is to overlook the great distinction between the two.

The Congress of the Confederation represented the States in their sovereignty, and, as such representatives, had legislative,

executive, and, in some degree, judicial power confided to it. Virtually, it was an assemblage of the States. In certain cases a majority of nine States were required to decide a question, but there is no express limitation, or restriction, such as is to be found in the ninth and tenth amendments to the Constitution of the United States. The General Government of the Union is composed of three departments, of which the Congress is the legislative branch, and which is checked by the revisory Power of the Judiciary, and the veto Power of the Executive, and above all is expressly limited in legislation to Powers expressly delegated by the States. If then, it be admitted, which is certainly questionable, that the Congress of the Confederation had power to exclude slave Property northwest of the Ohio River, that Power must have been derived from its character as representing the States in their sovereignty, for no indication of such a Power is to be found in the Articles of Confederation.

If it be assumed that the absence of a Prohibition was equivalent to the admission of the Power in the Congress of the Confederation, the assumption would avail nothing in the Congress under the Constitution, where Power is expressly limited to what had been delegated. More briefly, it may be stated that the Congress of the Confederation could, like the Legislature of a State, do what had not been prohibited, but the Congress of the United States could only do what had been expressly permitted. It is submitted whether this last position is not conclusive against the Possession of Power by the United States Congress to legislate slavery into or exclude it from Territories belonging to the United States.

This subject, which had for more than a quarter of a century been one of angry discussion and sectional strife, was revived, and found occasion for renewed discussion in the organization of Territorial governments for Kansas and Nebraska. The Committees on Territories of the two Houses agreed to report a bill in accordance with that recognized Principle, provided they could first be assured that it would receive favorable consideration from the President. This agreement was made on Saturday, and the ensuing Monday was the day (and the only day for two weeks) on which, according to the order of business estab-

lished by the rules of the House of Representatives, the bill could be introduced by the Committee of that House.

On Sunday morning, the 22d of January 1854, gentlemen of each Committee called at my house, and Mr. Douglas, chairman of the Senate Committee, fully explained the proposed bill, and stated their purpose to be, through my aid, to obtain an interview on that day with the President to ascertain whether the bill would meet his approbation. The President was known to be rigidly opposed to the reception of visits on Sunday for the discussion of any political subject; but in this case it was urged as necessary, in order to enable the Committee to make their report the next day. I went with them to the Executive mansion, and leaving them in the reception room, sought the President in his private apartments, and explained to him the occasion of the visit. He thereupon met the gentlemen, patiently listened to the reading of the bill and their explanations of it, decided that it rested upon sound constitutional principles, and recognized in it only a return to that rule which had been infringed by the compromise of 1820, and the restoration of which had been foreshadowed by the legislation of 1850. This bill was not, therefore, as has been improperly asserted, a measure inspired by Mr. Pierce or any of his Cabinet. Nor was it the first step taken toward the repeal of the conditions or obligations expressed or implied by the establishment in 1820, of the politico-sectional line of thirty-six degrees and thirty minutes. That compact had been virtually abrogated in 1850 by the refusal of the representatives of the North to apply it to the territory then recently acquired from Mexico. In May, 1854, the Kansas-Nebraska Bill was passed, its purpose was declared in the bill itself to be to carry into practical operation the "propositions and principles established by the compromise measures of 1850." The "Missouri Compromise" therefore, was not repealed by that bill—its virtual repeal by the legislation of 1850 was recognized as an existing fact, and it was declared to be "inoperative and void."

It was added that the "true intent and meaning" of the act was "not to legislate slavery into any Territory or State, nor to exclude it therefrom, but to leave the people thereof perfectly

free to form and regulate their domestic institutions in their own way, subject only to the Constitution of the United States.

From the terms of this bill, as well as from the arguments that were used in its behalf it is evident that its purpose was to leave the Territories equally open to the people of all the States, with every species of property recognized by any of them, to permit climate and soil to determine the current of immigration, and to secure to the people themselves the right to form their own institutions according to their own will as soon as they should acquire the right of self government, that is to say, as soon as their numbers should entitle them to organize themselves into a State prepared to take its place as an equal sovereign member of the Federal Union. The claim afterward advanced by Mr. Douglas and others, that this declaration was intended to assert the right of the first settlers of a Territory, in its inchoate, rudimental, dependent, and transitional condition, to determine the character of its institutions, constituted the doctrine popularly known as "squatter sovereignty." Its assertion led to the dissensions which ultimately resulted in a rupture of the Democratic party.

Sectional rivalry, the deadly foe of the "domestic tranquility" and the "general welfare" which the compact of union was formed to insure, now interfered with gigantic efforts to prevent that free migration which had been promised, and to hinder the decision by climate and the interests of the inhabitants of the institutions to be established by these embryo States. Societies were formed in the North to supply money and send emigrants into the new Territories; and a famous Preacher, addressing a body of those emigrants, charged them to carry with them to Kansas "the Bible and Sharpe's rifles." The latter were of course to be leveled against the bosoms of their Southern brethren who might migrate to the same Territory, but the use to be made of the Bible in the same fraternal enterprise was left unexplained by the reverend gentleman.

The war-cry employed to train the Northern mind for the deeds contemplated by the agitators was "No extension of slavery!" Was this sentiment real or feigned? The number of slaves (as has already been clearly shown) would not have

been increased by their transportation to new territory. It could not be augmented by further importation, for the law of the land made that piracy. Southern men were the leading authors of that enactment, and the public opinion of their descendants, stronger than the law, fully sustained it. The climate of Kansas and Nebraska was altogether unsuited to the negro, and the soil was not adapted to those productions for which negro labor could be profitably employed. If, then, any negroes held to service or labor, as provided in the compact of union, had been transported to those Territories, they would have been such as were bound by personal attachment mutually existing between master and servant, which would have rendered it impossible for the former to consider the latter as property convertible into money. As white laborers, adapted to the climate and its products, flowed into the country, negro labor would have inevitably become a tax to those who held it, and their emancipation would have followed that condition, as it has in all the Northern States, old or new. Wisconsin furnishing the last example.* It may, therefore, be reasonably concluded that the "war-cry" was employed by the artful to inflame the minds of the less informed and less discerning, that it was adopted in utter disregard of the means by which negro emancipation might have been peaceably accomplished in the Territories, and with the sole object of obtaining sectional control and personal promotion by means of popular agitation.

The success attending this artifice was remarkable. To such

* Extract from a speech of Mr. Davis, of Mississippi, in the Senate of the United States, May 17 1860: "There is a relation belonging to this species of property, unlike that of the apprentice or the hired man, which awakens whatever there is of kindness or of nobility of soul in the heart of him who owns it, this can only be alienated, obscured, or destroyed by collecting this species of property into such masses that the owner is not personally acquainted with the individuals who compose it. In the relation, however, which can exist in the Northwestern Territories, the mere domestic connection of one, two, or at most half a dozen servants in a family, associating with the children as they grow up, attending upon age as it declines, there can be nothing against which either philanthropy or humanity can make an appeal. Not even the emancipationist could raise his voice, for this is the high road and the open gate to the condition in which the masters would, from interest, in a few years, desire the emancipation of every one who may thus be taken to the northwestern frontier."